

ASCII MASTER FLOW – PANEL 1/9: Part XVI as a four-part constitutional architecture

ROOT QUESTION

How does Part XVI combine inclusion without using one legal mechanism?

REPRESENTATION -> Arts 330-334A.

SERVICES -> Art 335.

COMMISSIONS / CONTROL -> Arts 338-340.

IDENTIFICATION -> Arts 341-342A.

CROSS-LINKS

Art 275 grants | Arts 243D/243T local seats | Fifth/Sixth Schedule administration.

VERDICT

list != quota != commission report != welfare scheme.

ASCII MASTER FLOW – PANEL 2/9: SC/ST legislative seats and ordinary territorial voting

LOK SABHA

Art 330 -> SC/ST reserved seats linked broadly to population.

STATE ASSEMBLIES

Art 332 -> SC/ST reserved seats + specified North-East provisions.

ELECTION

reserved candidacy/seat -> ordinary territorial electorate votes.

TRAP

political reservation != separate electorate

| representation != Article 341/342 list alteration.

ASCII MASTER FLOW – PANEL 3/9: Women reservation and Article 334A activation chain

106TH AMENDMENT TEXT

Arts 330A + 332A + 334A.

|

v

first census after commencement -> relevant figures published

|

v

delimitation exercise -> electoral operation

|

v

rotation after subsequent delimitation as Parliament provides.

WITHIN SC/ST SEATS

women share included in constitutional design.

TRAP

inserted/commenced != presently operational.

ASCII MASTER FLOW – PANEL 4/9: Anglo-Indian history and political-reservation clock

ARTS 331 / 333

historical Anglo-Indian nomination provisions remain printed.

ARTICLE 334

SC/ST seat reservation -> extended to eighty years from commencement.

Anglo-Indian nomination -> not extended beyond seventy years -> ceased in 2020.

ARTS 336 / 337

services and educational-grant transitions -> exhausted after ten years.

TRAP

time-clause cessation != necessary textual omission.

ASCII MASTER FLOW – PANEL 5/9: Article 335: representation with administrative efficiency

ARTICLE 335

SC/ST claims in Union/State services

+

maintenance of administrative efficiency.

82ND AMENDMENT PROVISIO

qualifying-mark/evaluation relaxation for promotion reservation may be provided.

M. Nagaraj (2006) -> promotion-enabling provisions with constitutional conditions.

Jarnail Singh (2018) -> modifies data rule and applies creamy-layer logic.

TRAP

Art 335 is not a fixed quota or the source of OBC/EWS reservation.

ASCII MASTER FLOW – PANEL 6/9: Commissions, Union control and welfare grants

ART 338 -> NCSC | ART 338A -> NCST | ART 338B -> NCBC

reports + complaints + safeguards + civil-court inquiry powers -> advice, not binding judgment.

ART 339

Presidential commission + Union directions on Scheduled Areas/ST welfare.

ART 340

temporary backward-class investigation commission.

ART 275

specified ST welfare/Scheduled Area grant route.

TRAP

commission power != court | fiscal grant != list alteration.

ASCII MASTER FLOW – PANEL 7/9: List specification and the 102nd-105th Amendment sequence

Arts 341 / 342

President specifies State/UT SC/ST list -> Parliament includes/excludes.

102ND AMENDMENT

Arts 338B + 342A -> constitutional NCBC/Central List architecture.

Jaishri Laxmanrao Patil (2021)
interprets the pre-105th text.

105TH AMENDMENT

Central List for Central purposes
| State/UT list by law for own purposes.

TRAP

State SEBC list power != State power to alter SC/ST lists.

ASCII MASTER FLOW – PANEL 8/9: Sub-classification, local bodies and owner boundaries

K.V. Chinnaiyah v. State of Andhra Pradesh (2004)

earlier rule against SC sub-classification.

|

v overruled

Davinder Singh (2024)

evidence-based distribution within notified SC class may be designed.

BOUNDARY

sub-classification != inclusion/exclusion under Art 341.

LOCAL BODY

Arts 243D/243T -> separate reservation route.

AREA ADMINISTRATION / SCHEMES

exact Schedule, statute, budget or policy controls.

ASCII MASTER FLOW – PANEL 9/9: UPSC synthesis: identify the exact constitutional technique

PRELIMS FIREWALL

330/332 seats | 334 clock | 335 services | 338-series commissions
| 339 control | 340 inquiry | 341/342/342A lists | 275 grant cross-link.

MAINS SPINE

architecture -> representation -> time/activation -> services
-> safeguards -> list federalism -> Davinder boundary -> owner-scope conclusion.

PYQ ROUTE

Article 335 | women's reservation | NCSC | constitutional NCBC.

VERDICT

substantive equality uses distinct constitutional tools with distinct legal effects.